

24CV02642 LVNV Funding LLC vs Gloria Maceda

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-08

Motion: Motion to Vacate

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Tentative Ruling: LVNV Funding LLC vs Gloria Maceda

Case Number

24CV02642

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/08/2026 - 10:00

Nature of Proceedings

Motion to Vacate

Tentative Ruling

Attorney for Plaintiff: Donald Sherrill

Defendant is self-represented.

RULING

On October 30, 2025, Plaintiff LVNV Funding LLC filed a motion to vacate dismissal and enter judgment under terms of a stipulated settlement [balance at charge—off was \$2,970.88.] No opposition or other response was filed, and the Court granted the motion on January 14, 2026, as follows: "For all reasons discussed herein, the motion to vacate dismissal and enter judgment pursuant to Code of Civil Procedure section 664.6 is granted in the amount of \$1,980.00. Any costs to be recovered shall be pursuant to California Rules of Court, rule 3.1700. Plaintiff shall prepare and file a new order and new

judgment that omits the claimed Court costs.”

No order and new judgment were submitted pursuant to the Court's order of January 14, 2026. Instead, inexplicably, on April 17, 2026, Plaintiff filed this motion seeking the same relief as the October 30, 2025, motion (except, this motion seeks a different sum for the judgment than is supported by the accompanying declaration, apparently because of a typo in the text of the motion). Because the Court has already granted the motion to vacate the dismissal and to enter judgment, the motion is superfluous and constitutes an improper motion for reconsideration. (See Code Civ. Proc., § 1008, subd. (a).) The motion is denied on those grounds. (See *id.*, subd. (e).)

Nevertheless, the proposed order and judgment submitted with the April 17, 2026, motion is sufficient to comply with the Court's order of January 14, 2026. The Court will sign the new proposed order and enter the new proposed judgment based upon the Court's disposition in its order of January 14, 2026.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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